

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X **SUMMONS**

ELIJAH ROSARIO,

Plaintiff,

- against -

CITY OF NEW YORK, POLICE OFFICER DANIELA
FIGUEORA, POLICE OFFICER JOHN MCCORMICK,
POLICE OFFICER JOHN DOES1-3,

Defendants.

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Plaintiff designates New
York County as the place of
trial.

The basis of venue is:
The county in which the
action arose per CPLR 504(3)

The cause of action arose in
Queens County and is
against the City of New
York

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
April 25, 2022

DEFENDANTS' ADDRESS:

City of New York
100 Church St., New York, NY 10007

Police Officer Daniela Figueora
230 E 21st St., New York, NY 10010

Police Officer John McCormick
230 E 21st St., New York, NY 10010

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
14 Wall St, Ste 1603
New York, NY 10005

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index No.:

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ELIJAH ROSARIO ,

Plaintiff,

- against -

VERIFIED COMPLAINTCITY OF NEW YORK, POLICE OFFICER DANIELA
FIGUEORA, POLICE OFFICER JOHN MCCORMICK,
POLICE OFFICER JOHN DOES1-3,Defendants.

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Plaintiff, ELIJAH ROSARIO, by his attorneys. LORD LAW GROUP PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff ELIJAH ROSARIO brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

3. That at all times hereinafter mentioned, the POLICE OFFICER DANIELA FIGUEORA, POLICE OFFICER JOHN MCCORMICK, POLICE OFFICER JOHN DOES 1-3 were employees of the New York Police Department, acting in their capacity as a police

officers, and under color of law.

4. That all acts and incidents complained of herein occurred in New York County, and State of New York.

5. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

6. On or about January 27, 2022, Elijah Rosario was approached by Police Officers conducting an investigation on Avenue of the Americas and 23rd Street.

7. Mr. Rosario became aware of the Police Officers when they sped by him and hit a pedestrian.

8. When the Police Officers came out of the vehicle, they said, "You Fucking Kid, you made me hit a fucking car, we're going to fuck you up."

9. The Officers immediately proceeded to place him in handcuffs, and slammed Plaintiff face first onto the floor. His face hit the pavement under a scaffold.

10. At that time, Plaintiff had severe pain in his wrist, in his knee. The Officers were attempting to cause him as much pain as possible.

11. When he was on the ground, Defendants kneeled on his neck, his knees, his lower back and arm.

12. While he was on the ground, Defendants said to him, "Why the fuck you make us do this. You made us do this. This fucking hurts, right. You stupid

motherfucker, why you made us do this.”

13. The Officers refused to place Plaintiff on his side so he could breathe, causing obstruction to his windpipes. Plaintiff started throwing up, almost choking on his throw up.

14. At that point, good Samaritans came by and started recording the situation. They said, “He Can’t Breathe”, “Look at Him Throwing Up,” “Put Him On His Side.”

15. At some point, Mr. Rosario was taken off the ground. He was placed in the vehicle and transported back to the precinct.

16. Plaintiff complained that his handcuffs were too tight. The handcuffs were not loosened.

17. When Mr. Rosario was brought inside the precinct, Lieutenant Kim, whom Plaintiff had known previously, put a taser to his head and threatened to shoot Mr. Rosario with a taser.

18. Plaintiff was ultimately taken to the hospital before he was arraigned. Plaintiff was not charged with resisting arrest.

19. As a result of the DEFENDANTS’ conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
EXCESSIVE FORCE**

20. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

21. In detaining Plaintiff, DEFENDANTS used force.

22. The force used was unreasonable and excessive.

23. As a result of the unreasonable and excessive force, Plaintiff suffered injuries and substantial pain requiring medical attention.

24. DEFENDANTS' use of force was a substantial factor in causing the harm to Plaintiff.

25. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

**SECOND CAUSE OF ACTION:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

26. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

27. That, on January 27, 2021, DEFENDANTS, who were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

28. That, on January 27, 2021 DEFENDANTS committed an assault and battery knowingly, intentionally, and willfully.

29. That, on January 27, 2021, DEFENDANTS who committed the aforementioned assault and battery upon the Plaintiff Frances Babb were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK.

30. That, on January 27, 2021, the assault and battery on the Plaintiff was without probable cause and was not the result of an unlawful arrest.

31. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**THIRD CAUSE OF ACTION:
PRIMA FACIE TORT**

32. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

33. Defendants intentionally inflicted harm, resulting in damages, without excuse or justification, by an act or series of acts, excusing the foregoing claims, that were otherwise lawful.

34. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged

**FOURTH CAUSE OF ACTION:
FAILURE TO INTERVENE**

35. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

36. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

37. As a direct and proximate result of this unlawful conduct, plaintiff sustained the

DAMAGES

38. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

39. This action seeks damages from on or prior to January 27, 2021 through the present.

40. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be maliciously prosecuted, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

41. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological

damage, loss of liberty, loss of relationships, loss of property, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation .

42. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court November deem appropriate and equitable.

Dated: New York, New York
April 25, 2022

Yours, etc.

LORD LAW GROUP PLLC



Masai I. Lord
Attorneys for Plaintiff
ELIJAH ROSARIO
14 Wall St., Ste 1603
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD LAW GROUP PLLC, attorneys of record for Plaintiff ELIJAH ROSARIO. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
April 25, 2022



MASAI I. LORD
Counsel for Plaintiff